IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION

NORTHWESTERN GRADUATE WORKERS FOR PALESTINE (GWAP), JEEAYIN EZIAMAKA OGBULI (INDIVIDUALLY AND ON BEHALF OF OTHERS SIMILARLY SITUATED), AND MARWA TAHBOUB (INDIVIDUALLY AND ON BEHALF OF OTHERS SIMILARLY SITUATED),	Case No. 1:25-cv-12614
Plaintiffs,	Honorable Georgia N. Alexakis
v.	
NORTHWESTERN UNIVERSITY,	
Defendant.	

DEFENDANT'S MEMORANDUM OF LAW IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFFS' COMPLAINT

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INTRODUCTION

Defendant Northwestern University ("Northwestern" or the "University"), by and through its undersigned counsel, respectfully submits this memorandum of law in support of its Motion to Dismiss Plaintiffs Northwestern Graduate Workers For Palestine ("GWAP"), Ifeoluwa Ezekiel Ogbuli ("Ogbuli"), and Marwa Tahboub ("Tahboub") (collectively, the "Plaintiffs") Complaint (with prejudice pursuant to Fed. R. Civ. P. 12(b)(6) and 12(b)(1).

INTRODUCTION

This matter should be dismissed with prejudice because Plaintiffs have not alleged that Northwestern intentionally discriminated against them based on a protected category. In fact, their grievance is not about discrimination, retaliation, or forced workplace speech at all. Rather, it is about an ideological disagreement that is not actionable under any of the statutes pled.

Plaintiffs—a student organization and two graduate students—bring this action against Northwestern under 42 U.S.C. §1981 ("§ 1981"), Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d (Title VI), and the Illinois Worker Freedom of Speech Act, 820 ILCS 57 ("IWFSA"). They assert five claims: (1) race discrimination under § 1981; (2) race discrimination under Title VI; (3) retaliation under § 1981; (4) retaliation under Title VI; and (5) violation of the IWFSA. Plaintiffs allege Northwestern intentionally discriminated against them by requiring all students to complete an online anti-bias training that included a segment on antisemitism. They also allege that Northwestern intentionally discriminated against them by incorporating the International Holocaust Remembrance Alliance ("IHRA") definition of antisemitism into its Policy on Discrimination, Harassment, and Sexual Misconduct ("Discrimination Policy"), and by requiring all Northwestern students to sign attestations agreeing to comply with the University's Code of Student Conduct and Discrimination Policy. Plaintiffs allege that after they refused to comply with the anti-bias training and attestation requirements Northwestern unlawfully retaliated by restricting their registration status and threatening to terminate their student status. Finally,

they claim that the required anti-bias training violates the IWFSA, which prohibits employers against them by restricting their registration status and threatening to terminate their student status. Finally, they claim that the required anti-bias training violates the IWFSA, which prohibits from disciplining employees for refusing to attend or participate in meetings or communications conveying the employer's views on religious or political matters.

Although styled as civil rights claims, the gravamen of the Complaint is a disagreement over political viewpoint. Because they are critical of Zionism and have adopted a "framework[] of collective liberation, anti-colonialism, and global initiatives," Plaintiffs disagree with Northwestern's antisemitism training and with its decision to adopt the IHRA definition of antisemitism. Compl. ¶ 13, 61A, 56B[1]. But those requirements apply to every student at Northwestern, regardless of race, ethnicity, or national origin. Plaintiffs' real dispute is ideological – they challenge the content of the training based on their political and ideological viewpoint, not based on an identity protected under § 1981 or Title VI. Ideological disputes over campus programming or the scope of political expression are not actionable under federal antidiscrimination statutes.[2] As a result, Plaintiffs cannot bring a cause of action based on viewpoint disagreement under laws that protect against intentional discrimination.

Similarly, Plaintiffs' IWFSA claim should be dismissed because the law only applies to workplace training, and the training at issue is for students, not employees. Moreover, the Complaint itself shows that the content of the training was intended to encourage a civil, respectful, and harassment-free campus, which falls within one of the express exceptions to the IWFSA.

[1] Plaintiffs' Complaint contains duplicated paragraph numbers. For purposes of this motion, where a number appears twice, this brief cites the first as "¶ 54A" and the second as "¶ 54B."

[2] Federal antidiscrimination laws do not provide a cause of action for disparate treatment of speech conduct; rather, that is a First Amendment claim. *See Wax v. Trustees of the Univ. of Pa.*, 2025 U.S. Dist. LEXIS 167368, at *2, *7, 9, 20 (E.D. Pa. Aug. 27, 2025) (dismissing plaintiff's claims under Title VI and §1981 where a tenured professor faced sanctions after making statements denigrating racial minorities and the court found that federal antidiscrimination laws protect speakers rather than speech); *StandWithUs Ctr. for Legal Just. v. Mass. Inst. of Tech.*, 2025 U.S. App. LEXIS 27390, at *8 (1st Cir. Oct. 21, 2025) (emphasizing the distinction between Title VI and First Amendment protection, explaining that most of the conduct plaintiffs challenged as Title VI protected speech and that Title VI does not compel universities to quash such expression).

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Finally, this Court lacks subject matter jurisdiction over Plaintiff GW4P because it has failed to adequately plead either organizational or associational standing.

Because the Complaint fails to allege sufficient facts to state a claim for intentional discrimination, retaliation, or the IWFSA, and because this Court lacks subject matter jurisdiction over Plaintiff GW4P, Plaintiffs' Complaint should be dismissed with prejudice pursuant to Fed. R. Civ. P. 12(b)(6) and 12(b)(1).

RELEVANT FACTUAL BACKGROUND[3]

Plaintiff GW4P is a "collective" of Northwestern graduate students whose members are "committed to standing up for the Palestinian people through the framework of collective liberation, anti-colonialism, and global initiatives, primarily in the academic and institutional realms." Compl. ¶ 13. The Complaint does not allege that membership in GW4P is restricted to individuals who themselves are members of a particular race, ethnicity, or national origin. *Id.* Plaintiff Ogbuli is a second-year doctoral student in Northwestern's Department of History. *Id.* ¶ 14. Ogbuli is not "Arab, Jewish, or Muslim," but publicly associates with them. *Id.* Plaintiff Tahboub is a fifth-year doctoral candidate in Northwestern's Media, Technology & Society program. *Id.* ¶ 15. Tahboub identifies as "an American of Syrian and Palestinian national origin." *Id.* Both Ogbuli and Tahboub are currently teaching assistants. *Id.* ¶¶ 14-15. Ogbuli and Tahboub speech about Israel as antisemitic and chills the expression of Arab and Palestinian students advo-

[3] As required by Federal Rule of Civil Procedure 12(b)(6), Defendant accepts Plaintiffs' allegations as true, as it must, for purposes of this Motion only. Defendant reserves its right to dispute Plaintiffs' allegations in the event that the Motion is not granted, and denies and disputes Plaintiffs' allegations for all other purposes.

also assert that they wish to engage in advocacy and discourse regarding Palestinian rights but are limited in their ability to do so by Northwestern's allegedly unlawful requirements challenged in this action. *Id.*

Plaintiffs allege that in February 2025, Northwestern finally adopted the IHRA definition of antisemitism. Compl. ¶ 41. Plaintiffs allege that the definition improperly categorizes political speech about Israel as antisemitic and chills the expression of Arab and Palestinian students advocating for national liberation or criticizing Israel's government. *Id.* ¶ 43. Following that adoption, Northwestern implemented a mandatory training for all students titled "Building a Community of Respect and Breaking Down Bias" (the "training course"). *Id.* ¶¶ 44, 73A. The training course included, among other segments, a video entitled "Antisemitism: Here/Now," produced in collaboration with the Jewish United Fund ("JUF"), an organization that Plaintiffs describe as equating anti-Zionism with antisemitism. *Id.* ¶ 46.

As part of the training course, all students were required to attest that they had reviewed and agreed to be bound by Northwestern's Discrimination Policy (the "attestation"). Compl. ¶ 45. Plaintiffs allege that both documents incorporate the IHRA definition.[4] *Id.* Plaintiffs claim Northwestern thereby equates criticism of Zionism with antisemitism and insulates political ideology from critique. *Id.* ¶ 49. Plaintiffs allege that these policies and training requirements coerce students into endorsing a political position, which in turn precludes the ability of Palestinians to advocate for their own perceived rights, or be branded as antisemitic and disciplined accordingly. *Id.* ¶ 58A. Plaintiffs also allege the attestation and the training are not intended to foster a civil and collaborative workplace or reduce or prevent workplace harassment or discrimination. *Id.* ¶ 62A.

All students—regardless of race, ethnicity, or national origin—were instructed that failure to complete the training and attestation would result in a registration hold blocking course enrollment or modification. *Id.* ¶ 63. Plaintiffs allege that Northwestern's enforcement of the training and attestation resulted in registration holds and threat of "termination of student status," if that hold was not resolved. *Id.* ¶¶ 63–68A.

[4]The Student Code of Conduct is publicly available at https://www.northwestern.edu/communitystandards/student-handbook/student-handbook.pdf, and the Discrimination Policy is publicly available at https://www.northwestern.edu/civil-rights-office/policies-procedures/policies/policy-on-discrimination-harassment-and-sexual-misconduct.html. As the Complaint notes, neither includes the IHRA definition, but instead its use was untimely announced here: https://www.northwestern.edu/provost/federal-updates/antisemitism.html. *See* Compl. ¶ 41, fn2.

foster a civil and collaborative workplace for reduce or prevent workplace harassment or discrimination. ¶ 62.

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LEGAL STANDARD

Federal Rule of Civil Procedure 8(a)(2) requires that a pleading contain "a short and plain statement of the claim showing that the pleader is entitled to relief." Fed. R. Civ. P. 8(a)(2). When a complaint fails to allege facts that state a plausible claim for relief, dismissal under Rule 12(b)(6) is required. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (internal citations omitted). To survive a motion to dismiss, a plaintiff's "[f]actual allegations must be enough to raise a right to relief above the speculative level." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). A complaint must plead particularized factual content, and not conclusory allegations, which would allow the court to plausibly infer the defendant is liable for the alleged misconduct. *Iqbal*, 556 U.S. at 678. In assessing a motion to dismiss pursuant to Rule 12(b)(6), a claim should be dismissed where, accepting all well-pleaded factual allegations in the light most favorable to the plaintiff, the complaint nevertheless fails to "plausibly suggest that the plaintiff has a right to relief.'" *EEOC v. Concentra Health Servs., Inc.*, 496 F.3d 773, 776 (7th Cir. 2007). In the context of a motion to dismiss for lack of subject matter jurisdiction, the court accepts as true the well pleaded factual allegations, drawing all reasonable inferences in favor of the plaintiff, but a plaintiff faced with a 12(b)(1) motion to dismiss bears the burden of establishing that the jurisdictional requirements

have been met. *Center for Dermatology & Skin Cancer, Ltd. v. Burwell*, 770 F.3d 586, 588-89 (7th Cir. 2014) (citations omitted).

ARGUMENT

I. COUNTS I AND II FAIL TO STATE A CLAIM FOR RACE OR NATIONAL-ORIGIN DISCRIMINATION UNDER § 1981 AND TITLE VI AND SHOULD BE DISMISSED PURSANT TO FED. R. CIV. P. 12(b)(6).

A. § 1981 and Title VI Are Analyzed Under the Same Framework.

Section 1981 protects against intentional discrimination based on race, color,[5] or ethnicity in making and enforcing contracts—not religion, national origin, or political ideology. 42 U.S.C. § 1981(a); *Pourghoraishi v. Flying J, Inc.*, 449 F.3d 751, 756 (7th Cir. 2006). Likewise, Title VI provides that "[n]o person in the United States shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance." 42 U.S.C. § 2000d.

Courts in this Circuit analyze § 1981 and Title VI claims together because they require proof of the same elements. *See Lubavitch-Chabad of Ill., Inc. v. Northwestern Univ.*, 6 F. Supp. 3d 806 816 (N.D. Ill. 2013); *Friedel v. City of Madison*, 832 F.2d 965, 971 (7th Cir. 1987). Because Plaintiffs' § 1981 and Title VI claims rest on the same factual allegations and legal theory of intentional race discrimination, this Court should evaluate them under a unified standard for intentional race discrimination, with the exception that Title VI, but not § 1981, prohibits national origin discrimination.

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[5]Color is a protected category under both § 1981 and Title VI, but based on the allegations in the Complaint, it is not at issue in this lawsuit. Therefore, Northwestern has not addressed it as a relevant protected category in its argument.

[6]During the October 20, 2025 hearing on Plaintiffs' Application for Temporary Restraining Order, Dkt. No. 7, Plaintiffs' counsel confirmed that they are only proceeding on an intentional discrimination basis, and not on a hostile environment theory. Temporary Restraining Order Hearing Transcript, *Tahboub et. al. v. Northwestern University*, 1:25-cv-12614 (N.D. Ill. Oct. 20, 2025), at pp. 23:12-25:11. The Complaint also does not contain any allegations or counts alleging hostile environment harassment.

B. Plaintiffs Have Not Alleged Intentional Race-Based Discrimination.[6]

Title VI and § 1981 only protect against intentional discrimination. *Alexander v. Sandoval*, 532 U. S. 275, 280 (2001) (Title VI); *Gen. Bldg. Contractors Ass'n v. Pennsylvania*, 458 U.S. 375, 391 (1982) (§ 1981). To survive dismissal, Plaintiffs must plausibly allege that their race, ethnicity, or national origin was the *but-for* cause of the adverse action. *Comcast Corp. v. Nat'l Ass'n of African Am.-Owned Media*, 140 S. Ct. 1009, 1014–15 (2020). They can do so via the direct or indirect method. *Montgomery v. Am. Airlines, Inc.*, 626 F.3d 382, 393 (7th Cir. 2010). Plaintiffs fail on both counts because they only summarily state that "Defendant Northwestern University intentionally discriminate[d]" against them. Compl. ¶¶ 56, 63. This conclusory statement is inadequate to establish intentional discrimination under either method. *See Iqbal*, 556 U.S. at 680–81 (rejecting as conclusory allegation that officials "adopted a policy 'because of,' not merely 'in spite of,' its adverse effects upon an identifiable group" (quoting *Pers. Admin'r of Mass. v. Feeney*, 442 U.S. 256, 279 (1979))).

1. There Are No Allegations of Direct or Circumstantial Evidence of Race-Based Animus.

To demonstrate discrimination under the direct method, Plaintiffs must provide "direct evidence of — or sufficient circumstantial evidence to allow an inference of — intentional racial discrimination . . ." *Montgomery*, 626 F.3d at 393 (citing *Coffman v. Indianapolis Fire Department*, 578 F.3d 559, 563 (7th Cir. 2009). "Direct evidence typically requires an admission of discriminatory animus," or through circumstantial evidence that establishes "discriminatory motive through a longer chain of inferences." *Mach v. Will County Sheriff*, 580 F.3d 495 (7th Cir. 2009); *Goodman v. Bowdoin Coll.*, 380 F.3d 33, 43 (1st Cir. 2004) (observing that "racial animus" is "a necessary component of . . . claims under Title VI"). Plaintiffs' Complaint does not include any such allegations. There are no allegations of racial epithets, slurs, statements reflecting bias, or facts

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2005); *Goodman v. Bowdoin Coll.*, 380 F.3d 33, 43 (1st Cir. 2004) (observing that "racial animus" is "a necessary component of . . . claims under Title VI").

Plaintiffs' Complaint does not include any such allegations. There are no allegations of racial epithets, slurs, statements reflecting bias, or facts suggesting that Northwestern acted with hostility toward Arabs, Palestinians, or any other race or ethnicity in adopting or enforcing its training and attestation requirements. Indeed, nothing in the Complaint asserts that Plaintiffs were required to comply with these requirements *because of* their race or ethnicity.

Furthermore, the Complaint confirms that the challenged training course and attestation are neutral on their face. Both the training course and attestation requirements apply equally to all students, regardless of race, color, ethnicity, or national origin. Compl. ¶¶ 44–45. There is no allegation that either the training course or the attestation requires endorsement of any particular content. Plaintiffs do not identify a single instance where Arab, Palestinian, or any other students were singled out or treated differently in how the requirement was applied. The training course was mandatory for *every* student, regardless of race, ethnicity, or national origin.

The reasoning in *Lubovich* is instructive. *See generally Lubovich*, 6 F. Supp. 3d 806. In *Lubovich*, Northwestern revoked recognition of the Jewish fraternity "Chabad House" because of underage drinking violations, which Plaintiffs claimed was evidence of intentional religious discrimination because non-Jewish fraternities and sororities remained recognized campus organizations despite the fact that they had similar issues. *Id.* at 810–815. The Court rejected that argument, finding that the University's decision was motivated by misconduct, not religion, because other Jewish organizations on campus were unaffected. *Id.* at 816–817.

[Remainder of Argument I.B. and Arguments II through IV, pages 9 to 19 of the filing, are omitted from this transcription.]

CONCLUSION

For the foregoing reasons, Defendant respectfully requests that the Court grant its motion to dismiss with prejudice and award it the costs and fees it incurred in defending this frivolous lawsuit.

Dated: November 19, 2025

Respectfully submitted,

NORTHWESTERN UNIVERSITY

By: /s/ Monica H. Khetarpal
One of Their Attorneys

CERTIFICATE OF SERVICE

I, Monica H. Khetarpal, an attorney, certify that on November 19, 2025, I caused a true and correct copy of the attached ***Defendants' Memorandum of Law In Support of Its Motion to Dismiss Plaintiffs' Complaint*** to be served to be filed with the Court by electronic filing protocols, and that same will therefore be electronically served on all attorneys of record registered with the Court's ECF/CM system.

/s/ Monica H. Khetarpal
One of Defendants' Attorneys

/s/ Monica H. Khetarpal
One of Defendants' Attorneys